



Code: GBNAA/JHFF
Adopted: 7/21/21

Reporting Requirements for Suspected Sexual Conduct with Students

Sexual conduct by HCCS employees, contractors¹, agents², and volunteers³ is not tolerated. All HCCS employees, contractors, agents, and volunteers are subject to this policy.

“Sexual conduct,” means verbal or physical conduct or verbal, written or electronic communications by a school employee, a contractor, an agent or a volunteer that involve a student and that are sexual advances or requests for sexual favors directed toward the student, or of a sexual nature that are directed toward the student or that have the effect of unreasonably interfering with a student’s educational performance, or of creating an intimidating, hostile or offensive educational environment. “Sexual conduct” does not include touching that is necessitated by the nature of the school employee’s job duties or by the services required to be provided by the contractor, agent or volunteer, and for which there is no sexual intent.

“Student” means any person who is in any grade from prekindergarten through grade 12 or 21 years of age or younger and receiving educational or related services from HCCS that is not a post-secondary institution of education, or who was previously known as a student by the person engaging in sexual conduct and who left school or graduated from high school within 90 days prior to the sexual conduct.

Any HCCS employee, contractor, agent or volunteer who has reasonable cause to believe that a student has been subjected to sexual conduct by another HCCS employee, contractor, agent or volunteer, or that another HCCS employee, contractor, agent or volunteer has engaged in sexual conduct with a student shall immediately report such suspected sexual conduct to the administrator/principal or the Administrator for Accountability at Beaverton School District in the event the administrator/principal is the alleged perpetrator for their school building. A report received by the Administrator for Accountability at Beaverton School District about the school administrator/principal shall also be reported to the Board chair.

If an employee fails to report suspected sexual conduct or fails to maintain confidentiality of records, the employee will be disciplined up to and including dismissal.

When the designated licensed administrator receives a report of suspected sexual conduct by a HCCS employee, contractor, agent, or volunteer, the administrator will follow procedures established by the

¹ “Contractor” means a person providing services to the public charter school under a contract in a manner that requires the person to have direct, unsupervised contact with students.

² “Agent” means a person acting as an agent for the public charter school in a manner that requires the person to have direct, unsupervised contact with students.

³ “Volunteer” means a person acting as a volunteer for the public charter school in a manner that requires the person to have direct, unsupervised contact with students.

HCCS and set forth in administrative regulation JHFF/GBNAA-AR - Suspected Sexual Conduct Report Procedures and Form. All such reports will be reported to the Oregon Department of Education (ODE) or Teacher Standards and Practices Commission (TSPC) as appropriate, for investigation. The agency receiving a report will complete an investigation regardless of any changes in the relationship or duties of the person who is the alleged perpetrator.

When there is reasonable cause to support the report, a HCCS employee suspected of sexual conduct shall be placed on paid administrative leave pending an investigation and HCCS will take necessary actions to ensure the student's safety.

When there is reasonable cause to support the report, a HCCS contractor, agent, or volunteer suspected of sexual conduct shall be removed from providing services to HCCS and HCCS will take necessary actions to ensure the student's safety.

HCCS will post in each school building the names and contact information of the employees designated for the school building to receive reports of suspected sexual conduct and the procedures the designee will follow upon receipt of the report.

HCCS will notify, as allowed by state and federal law, the person who was subjected to the suspected sexual conduct about any actions taken by HCCS as a result of the report.

A HCCS employee, contractor, or agent will not assist another HCCS employee, contractor, or agent in obtaining a new job if the individual knows, or has reasonable cause to believe HCCS employee, contractor, or agent engaged in sexual conduct. Nothing in this policy prevents HCCS from disclosing information required by law or providing the routine transmission of administrative and personnel files pursuant to law.

The initiation of a report in good faith about suspected sexual conduct may not adversely affect any terms or conditions of employment or the work environment of the person who initiated the report or who may have been subject to sexual conduct. If a student initiates a report of suspected sexual conduct by a HCCS employee, contractor, agent, or volunteer in good faith, the student will not be disciplined by HCCS or any HCCS employee, contractor, agent, or volunteer.

HCCS will provide to employees at the time of hire, or to a contractor, agent, or volunteer at the time of beginning service for HCCS, the following:

1. A description of conduct that may constitute sexual conduct;
2. A description of the investigatory process and possible consequences if a report of suspected sexual conduct is substantiated; and
3. A description of the prohibitions imposed on HCCS employees, contractors and agents when they attempt to obtain a new job, pursuant to ORS 339.378(2).

All HCCS employees are subject to Board policy GCAB - Personal Electronic Devices and Social Media - Staff regarding appropriate electronic communications with students.

Any electronic communications with students by a contractor, agent, or volunteer for HCCS will be appropriate and only when directed by HCCS administration. When communicating with students

electronically regarding school-related matters, contractors, agents, or volunteers shall use HCCS e-mail using mailing lists and/or other internet messaging to a group of students rather than individual students or as directed by HCCS administration. Texting or electronically communicating with a student through contact information gained as a contractor, agent, or volunteer for HCCS is strongly discouraged.

The administrator/principal shall develop administrative regulations to implement this policy and to comply with state law.

END OF POLICY

Legal Reference(s):

[ORS 338.115](#)

[ORS 339.370 - 339.400](#)

[ORS 419B.005 - 419B.045](#)

Every Student Succeeds Act, 20 U.S.C. § 7926 (2018).

Cross Reference(s):

GBN\JBA - Sexual Harassment

GCAB - Personal Electronic Devices and Social Media - Staff

IIBGA - Electronic Communications System

JHFE - Reporting of Suspected Abuse of a Child